

Dhrubaneel Biswas

**Advocate
M.Sc., LLB**



Supreme Court of India

&

High Court at Calcutta

Call & Whatsapp: +91-9830776277 | Email: adv.dhrubaneel.biswas@gmail.com

Ref: _____

Date: 10.02.2026

LEGAL NOTICE

*(MOST URGENT – FINAL DEMAND BEFORE INITIATION OF COERCIVE &
PENAL ACTION)*

To,

1. Shri Nemai Mondal

S/o Late Khagendranath Mondal

Residing at: 23 Canal Street, Sreebhumi, Kolkata – 700048, P.S. Lake Town.

2. Smt. Mangala Ghosh

D/o Late Khagendranath Mondal

Residing at: Patipukur, Jora Bridge, P.O. Sreebhumi, Kolkata – 700048.

Subject:

**FINAL LEGAL NOTICE FOR WILFUL, DELIBERATE & CONTEMPTUOUS
NON-COMPLIANCE OF THE LAWFUL ORDER PASSED BY THE LEARNED
SUB-DIVISIONAL MAGISTRATE, BIDHANNAGAR IN M.A. CASE NO.
04/2024 UNDER THE MAINTENANCE & WELFARE OF PARENTS AND
SENIOR CITIZENS ACT, 2007.**

Sir/Madam,

Under the express instructions and authority of my client Smt. Pushpo Mondal, widow of Late Khagendranath Mondal, senior citizen, presently residing at Flat No. 111, 23 Canal Street, P.O. Sreebhumi, P.S. Lake Town, Kolkata – 700048, I hereby serve upon you this FINAL, MOST STRINGENT AND PRE-LITIGATION LEGAL NOTICE as follows:

1. FACTS LEADING TO THE PRESENT NOTICE

1. That my client, an aged, helpless and financially dependent widow, was subjected to continuous neglect, abandonment and economic deprivation at your hands despite being your biological mother.

Residence & Postal Communication

181/34, Arihant Apartment
Flat – G2, Dakshindari Road,
Shreebhumi, Kolkata – 700048

Chamber

7B, K.S. Roy Road, 1st Floor
Calcutta High Court,
Kolkata - 700001,
West Bengal,
INDIA.

Chamber

7th Raj Mohan Street
S.K. Associates, 2nd Floor
Kolkata - 700073

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2. That owing to your utter refusal to maintain and look after her basic needs such as food, medicines, clothing and shelter, she was compelled to invoke the statutory protection under the Maintenance & Welfare of Parents and Senior Citizens Act, 2007 before the Learned Sub-Divisional Magistrate, Bidhannagar.
3. That the case was registered as M.A. Case No. 04/2024 titled “Sri Khagendranath Mondal & Anr. –Vs– Shri Nemai Mondal & Ors.”
4. That during pendency of the proceedings, the original complainant Late Khagendranath Mondal expired, and thereafter my client continued the proceedings as Complainant No. 2.
5. That upon direction of the Learned Authority, I.C. Lake Town Police Station conducted an enquiry and submitted a report substantiating the allegations of neglect and non-maintenance against you.
6. That after granting full opportunity of hearing to all parties and upon appreciation of records, evidence and enquiry report, the Learned Sub-Divisional Magistrate was pleased to pass a reasoned, speaking and enforceable order dated 08.05.2025.

2. OPERATIVE DIRECTIONS PASSED AGAINST YOU

By the said order, you were specifically directed as follows:

- **Shri Nemai Mondal** to pay **Rs. 3,500/- per month** towards maintenance of his mother.
- **Smt. Mangala Ghosh** to pay **Rs. 2,500/- per month** towards maintenance.
- Payment to be made **every month before the 6th day** of the English calendar month.
- To ensure peaceful residence of my client at her flat without obstruction.
- To return Aadhaar Card, Voter ID, PAN Card, Death Certificate and other documents.
- **I.C. Lake Town P.S.** directed to ensure strict compliance.

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3. YOUR WILFUL & CONTEMPTUOUS DISOBEDIENCE

That in utter defiance of the rule of law and in brazen disregard to the authority of a Judicial Magistrate exercising statutory powers, you have:

- Wilfully defaulted in payment of maintenance.
- Accumulated arrears intentionally.
- Failed to comply within the stipulated date.
- Ignored binding statutory directions.
- Continued economic abuse of a senior citizen.

Your conduct is not mere default but **calculated, deliberate and contumacious disobedience**.

4. STATUTORY & LEGAL LIABILITY

Your acts squarely attract penal and coercive consequences under the **Maintenance & Welfare of Parents and Senior Citizens Act, 2007**, including:

- **Section 5 & 9** – Statutory right of parents to claim maintenance.
- **Section 11** – Enforcement of maintenance order as arrears.
- **Section 23** – Protection of senior citizen property rights.
- **Section 24** – Punishment for abandonment/neglect of senior citizen.

Non-compliance also invites recovery as **arrears of land revenue** and coercive enforcement including warrant.

5. JUDICIAL PRECEDENTS (CITATIONS)

Your liability is further fortified by settled law:

1. **Kirtikant D. Vadodaria vs. State of Gujarat (1996) 4 SCC 479**
– Hon'ble Supreme Court held that children have a moral and legal obligation to maintain parents.

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2. **Dr. Vijaya Manohar Arbat vs. Kashirao Rajaram Sawai (1987) 2 SCC 278** – Daughter equally liable to maintain parents.
3. **Ashwani Kumar vs. Union of India (2019) 2 SCC 636**– Supreme Court directed strict implementation of Senior Citizens Act and protection of elderly rights.
4. **Sunny Paul & Anr. vs. State NCT of Delhi (Delhi HC)** – Maintenance orders under the 2007 Act are enforceable through coercive machinery.
5. **Subhashini vs. District Collector (Madras HC)**– Non-payment of maintenance to parents warrants recovery and penal action.

Thus, your liability is absolute, statutory and judicially settled.

6. CONTEMPT & CRIMINAL EXPOSURE

Your continued disobedience amounts to:

- Wilful violation of a lawful order of a public authority.
- Economic abuse of a senior citizen.
- Statutory neglect punishable with imprisonment/fine.
- Grounds for distress warrant, attachment and recovery.

You are liable for **coercive execution, police enforcement and penal prosecution**.

7. FINAL DEMAND

You are hereby finally called upon to:

1. Pay **entire arrear maintenance** till date.
2. Continue monthly payments regularly.
3. Pay before the **6th of every month** without default.
4. Return all original documents immediately.
5. Cease all acts of harassment or obstruction.

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8. TIME LIMIT

You are granted **15 DAYS** from receipt of this notice to comply in full.

9. CONSEQUENCES OF NON-COMPLIANCE

Failing compliance, my client shall initiate **simultaneous legal actions**, including:

- Execution before the Learned Magistrate.
- Recovery as arrears of land revenue.
- Issuance of warrant & attachment.
- Criminal prosecution under Section 24 of the Act.
- Police intervention for enforcement.

All costs, consequences and liabilities shall be entirely upon you.

This notice is issued to you without prejudice to all other civil and criminal remedies available in law.

Thanking You

Dhrubaneel Biswas

Advocate

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